

LAFAYETTE COUNTY
FILED

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JEFF BUSBY
CLERK

31- JOSEPH B EAST, SHERIFF OF LAFAYETTE COUNTY 711 JACKSON AVE E, OXFORD, MS 38655

21-494

AFFIDAVIT/DECLARATION OF TRUTH

I, **MATTHEW OLIVER REARDON** the undersigned, make this Affidavit/Declaration of Truth of my own free will, and I hereby affirm, declare and swear, under my oath and under the pains and penalties of perjury under the laws of the United States of America and of this state, that I am of legal age and hereby attest that the statements, averments and information contained in this Affidavit/Declaration are true and correct to the best of my knowledge.

This Affidavit/Declaration of Truth is lawful notification you, and is hereby made and sent to you pursuant to the Federal Constitution, specifically the Bill of Rights, in particular, Amendments I, IV, V, VI, VII, IX, X, XIV; and The Bill of Rights detailed in Article 3 of the Mississippi Constitution specifically sections 11, 12, 13, 14, 17, 23, 24, 25, 26, and 26-A. This Affidavit/Declaration of Truth requires your written rebuttal to me, in kind, specific to each and every point of the subject matter stated herein, within 15 days, via your own sworn and notarized affidavit, using true fact, valid law and evidence supporting your rebuttal of the specific subject matter stated in this Affidavit/Declaration. You are hereby noticed that your failure to respond, as stipulated, and rebut, with particularity and specificity, anything with which you disagree in this Affidavit/Declaration, is your lawful, legal and binding tacit agreement with and admission to the fact that everything in this Affidavit/Declaration is true, correct, legal, lawful, and fully binding upon you in any court in America, without your protest or objection and that of those who represent you.

1. Acts committed by you, **JOSEPH EAST**, acting as **SHERIFF OF LAFAYETTE COUNTY, MS** either supports and upholds the Constitutions, national and state, or oppose and violates them.
2. You have taken an oath to support and uphold the national and state Constitutions and are constitutionally mandated to abide by that oath in the performance of your official duties.

3. You have no constitutional authority, or any other form of valid, lawful authority, to oppose and violate the very documents to which you swore or affirmed your oath and under which you were delegated by the people the limited authority to conduct the duties of your office.
4. The above three positions are true, factual, lawful and constitutionally ordained.
5. Through this Affidavit/Declaration of Truth, you are hereby noticed of your alleged violations of the below mentioned sections of the Mississippi Constitution along with supporting facts to corroborate the claims that are being made

You, Joseph B East, acting as Sheriff, swore an oath to uphold and support the Constitution of the United States of America and the Your State Constitution, and pursuant to your oath, you are required to abide by that oath in the performance of your official duties. You have no Constitutional or other valid authority to defy the Constitutions, to which you owe your limited authority, delegated to you by and through the People, and to which you swore your oath; yet, by your actions against the People you have violated those oaths and engaged in myriad instances of incompetence, negligence, dereliction of duty, malfeasance, sedition, insurrection, treason and criminal, unconstitutional behavior rendering you unfit to hold public office.

However, despite the above-stated factual, lawful positions, your unconstitutional actions, as described throughout this Affidavit/Declaration of Truth, clearly demonstrate how you have violated all of the above lawful positions, the Constitutions, your oath of office, acted against the public good by knowingly and willfully violating the public trust and committing sedition and insurrection. Pursuant to your unlawful and unconstitutional actions, you have invoked the self-executing Sections 3 & 4 of the 14th Amendment to the National Constitution, thereby have lawfully vacated your office and forfeited all benefits thereof, including salary and pension. Please note that, as stated above and below, if you fail to specifically rebut, in kind, any of the charges, claims and positions set forth in this Affidavit/Declaration, then, you tacitly

admit to them, and these admissions will be lawfully used against you. The following paragraphs and others throughout this Affidavit/Declaration describe some of your unlawful, unconstitutional actions, which have harmed myself and others:

Based upon a report created on May 30, 2017, it was stated that on May 24, 2017 Jarrett Bundren, an investigator with Lafayette County Sheriff's Department received via a phone call stating that I, Matthew Reardon, was making threats towards an individual by the name of Todd Lynch. Affiant has effortlessly made the claim that this entire fiasco amounted to a crime alleged that was never truly committed in order to suppress and prevent an outspoken conservative, 2nd amendment activist from speaking at a public forum which he was slotted in advance to speak at on June 6, 2017; the day that just so happened to be election day for Robyn Tannehill. Completely violating the constitutional rights of another by way of a knowingly false charge which led to false imprisonment was not enough for Lafayette County Officials, as they deprived nearly all procedural due process rights which all accused are to be afforded in order to contrive a conviction stemming from intimidation and fear, not facts and evidence. Affiant was held illegally confined in the Lafayette County Detention Center from the time of his arrest, May 26 2017 until he received an initial/bond hearing on May 30 2017. This amounted to nearly 96 hours before movant was brought before a judge, twice the maximum length allowable under the Mississippi Rules of Criminal Procedure which had recently been updated prior to affiant's arrest and incarceration to follow.

MRCP Rule 5.1(b)(3) states if a person is taken into custody, the person shall be taken without unnecessary delay, and in no event later than forty-eight (48) hours after arrest, before a judge who shall proceed with an initial appearance.

- a) If the person arrested is not taken before a judge within forty-eight (48) hours, the person detained shall be released on execution of an appearance bond in the minimum amount set pursuant to Rule 8 and directed to appear at a specified time and place.
- b) Affiant tried to assert his complete innocence through a bill of sale proving not only that it was an impossibility for him to have committed the crime charged, but that in fact no crime was committed. Judge Carolyn Bell cut Affiant off from speaking on two separate occasions to stating he had “the right to remain silent” just prior to setting a completely outrageous appearance bond.
- c) Judge Bell never cared to advise me that I had the right to a Preliminary Hearing. MRCrP 8.1 lists a table recently updated approximately a month prior showing ranges for types of crimes.
- d) A crime receiving a maximum incarceration of 10-years should receive a \$5,000-\$50,000 Appearance Bond. Affiant’s alleged crime received a maximum 5-years incarceration yet was set at \$150,000. **Due to it already going well beyond 48-Hours before affiant was afforded an initial hearing, Judge Bell was obligated to issuing an appearance bond of \$5,000 or releasing affiant on his personal recognizance.**
- e) Affiant makes claims of improper influence being the key factor in what had occurred and that this move had likely been decided upon just prior to the initial hearing commencing

Affiant reasserts his claims of needing to get his daughter out of an ill-brought, fraudulent, and deceptive chancery court matter which just so happened to be coincidentally piled on at the same time to further stack the deck. Upon pleading out following extended mental torture, Lafayette County Officials insisted on a banishment being a stipulation in order to get rid of their problem and source of liability for at least the newly elected mayor’s first term, along

with fully disarming him, and insisting upon the signing of a covenant to not sue Lafayette County and Oxford employees and officials, Sheriff's Department, and The Lynch's. However, exculpatory evidence of innocence existed all along, and that a preliminary hearing was never afforded. Bond was set disproportionately and unconstitutionally high in a clear violation of the 8th Amendment to the Federal Constitution as the bond set at \$150,000 was three times higher than the established guidelines stated even for an alleged crime that could see twice the potential length of incarceration if found guilty. A motion for Habeas Corpus seeking bail reduction was filed June 5, 2017 alleging that Affiant was illegally confined and restrained of liberty in the Lafayette County Detention Center with bail in the amount of \$150,000 and that confinement was illegal because bail was excessive, oppressive and beyond the financial means of Affiant or his family and loved ones. This Habeas Corpus Petition placed Lafayette County on notice of violations of the Eighth and Fourteenth Amendments to the United States Constitution and §§ 26 and 29 of the Mississippi Constitution at that time. At the bare minimum, this motion commanded that the Sheriff produce the affiant and show good cause why he should not be discharged from such illegal confinement immediately or have his bond reduced to a constitutional amount. The Habeas Corpus was approved to proceed in forma pauperis on June 7, 2017. However, the approved petition was never proceeded upon and coincidentally Affiant was never even informed that this petition was filed on his behalf much less approved. Approximately 2 months after plea was entered, A Psychologist in Tupelo, whom was the referring doctor for Lafayette County Chancery Court, notated coercion on his report as the chief reason for such plea. In the following months and years upon the discovery of additional facts and evidence, Lafayette County primarily through its most Sheriff Joseph East has refused to provide equal protections under its laws

and stands accused of continued intentional deprivation of the Affiant's civil rights in a continued insistence on covering its tracks and shifting guilt with the help of malicious prosecution and preferential prosecution through the knowing introduction and use of perjurious testimony in order to contrive another highly immoral, unlawful, and unconstitutional conviction. Through a plethora of discovered evidence that has surfaced, it would more than appear that East has had direct involvement in all that has transpired dating back to May of 2017 while under his prior command and title of Chief of Police for Oxford Police Department. Affiant states he had no prior run in's nor issues with East prior to his return to Oxford in 2020, and that evidence now demonstrates an ill intent and foul play clearly demonstrated by East and directed at affiant unbeknownst at the time to him. **Affiant awaits his guilty plea being declared involuntary due to a complete denial of his procedural due process rights, guaranteed by the United States and State of Mississippi Constitutions. Affiant claims this deprivation of rights due to all accused in combination with the coercion tactics places Lafayette County and its Officials in Direct violation of State and Federal Law, making his plea involuntary and void and a violation of State Law which the State and County should never have been allowed to be in receipt of in the first place.**

That on July 7, 2020 Affiant filed his post-conviction relief in Lafayette County Circuit Court seeking complete reversal of his plea based on stated violations he became aware of. The judge assigned was Judge John Kelly Luther. On July 30, 2020 Circuit Court Judge Kelly Luther **DENIED** affiant's motion for relief which was brought with merit, in good timing, and in the correct court and jurisdiction. Affiant alleges that his post-conviction relief motion was prejudicially denied with biasness and favorability shown to the respondent, as the grounds on which post-conviction relief was brought along with the alleged fraud conducted by the State and

Lafayette County not only warranted but turned highly prejudicial against the affiant when county officials contrived a fraudulent conviction in 2017 and beyond negligent and in fact injurious upon the affiant when Lafayette County Circuit Court refused to hold an evidentiary hearing or look at any fact stated when constitutional rights violations through complete procedural due process rights were alleged amounted to even more deprivation and even what now is alleged as a complete chilling of constitutional rights of all citizens through a complete refusal of the equal protections of the law. Up until 8/12/2020, the assigned judge on the post-conviction relief was Judge Kent Smith. However, Judge John Kelly Luther continued showing an interest in affiant's matters by way of coming in to DENY each motion submitted despite the assignment of the case belonging to Kent Smith. Affiant filed a motion for recusal on 8/12/2020 and upon submission of this motion, the official record was ALTERED to then reflect John Kelly Luther as the assigned judge. This was certainly a rather large cause for concern.

Between July, 2021 and August, 2021, I, Matthew Oliver Reardon, had obtained press credentials, further providing official notice that I was a recognized and credentialed Reporter/Photographer/Journalist as a member in good standing with the Constitution First Amendment Press Association for independent work in journalism and reporting. It was around this time that Lafayette County officials appeared as if their authority had been challenged, however it begins to become clear that a clear abuse of power by Local Government Officials would be the culprit. A simple, basic understanding and knowledge of our Constitutional rights yields the fundamental right to petition the Government for Redress is and always has been inherently vested in, and derived from the people. All government of right originates with the people, is founded upon their will only, and is instituted solely for the good of the whole. Furthermore, the people of this state have the inherent, sole, and exclusive right to regulate the

internal government and police thereof. This is a guaranteed right of all citizens of the state under Article 3 Section 6, yet another basic right requiring no credentials

On 11/4/2021 Affiant went to trial for 9 separate charges placed against him by Lafayette County Sheriff's Department and his ex, Phyllis "Liz" Crowder. 2 of the 9 charges came from a situation resulting in an alleged Disorderly Conduct and Resisting Arrest December 27, 2020 an email was sent to Sheriff East with "Criminal Conspiracy" in the subject like reporting alleged crimes involving the harboring and exploitation of Affiant's firstborn child (LER) which was opened approximately 2-hours later by the Sheriff. An investigation and assistance in stopping it was requested. Yet no response came from Sheriff East and this is the sole reason that brought affiant to the Sheriff's Department seeking assistance of the sheriff due the alleged crimes continuing to be committed. Affiant claims the complaints alleged were ill-brought, retaliatory, and relied upon mob-domination and the knowing use and introduction of perjured testimony by Lafayette County Sheriffs Department; in particular Deputies Dixon and Tidwell; and that both perjurious and defamatory statements were given under oath by the Lafayette County Sheriff Joey East. Affiant attests that a sloppy, inconsistent investigation attributed to three of the nine charges alleged by Deputies Beavers and Williford, and that evidence was never properly preserved by Lafayette County Sheriff's Department for the purposes of trial.

On December 3, 2021 Affiant filed a cover page and motion seeking complete dismissal of conviction rendered and citing well cited and established federal and state law supporting his position that his Due Process Rights had again been violated by the county and that the new convictions must be set aside. On December 6, 2021, Affiant had discovered that the assigned

judge (Kent Smith) had once again been changed in the system to reflect John Kelly Luther. In a non-threatening, non-accusatory way affiant simply tried to get an understanding of where or who could be responsible for this important record supposedly randomly assigned via algorithm changing. Circuit court clerk Jeff Busby got highly defensive and advised Chyna Sinervo to not answer any of affiant's questions, when affiant was simply fulfilling his civil duty in petitioning the government for redress of a major grievance. At this time Busby gets on his cell phone and presumably contacts Sheriff Joey East who within approximately 5-minutes time is captured on video pulling up, getting out of his car, and telling affiant to not go back into circuit court unless he had something to file because he was "disturbing their business". The following day, December 7, 2021 East reported to Communicare employee Rachel Alcorn knowingly false and damning statements in order to get Communicare to seek Judicial Commitment of affiant based on the lies given. The affidavit is approved and signed off by Judge Lawrence Little and immediately after, two deputies go on the hunt to find and take affiant into custody on the newly signed writ. This happens shortly after as Affiant, his wife, and stepdaughter arrive home and is captured on video. Affiant states the Judicial Commitment was fraudulent and stemmed from false information reported by Lafayette County Sheriffs Department and it's Sheriff Joey East in order to cover up a matter of concern which affiant was seeking answers to, and that this particularly filed matter in circuit court is a matter of interest to the Lafayette County Sheriff adding motive behind the highly immoral move involving the communication of lies to Alcorn. This was a dangerous attack on the freedoms and liberties of a private citizen and member of the press during the commission constitutionally protected activity.

Sheriff Joseph B, East, you are alleged to be in violation of your oath of office, the national and state Constitutions, and in clear violation of the following laws/statutes:

- 1) Section 802 of the Patriot Act which clearly defines a domestic terrorist.**

- 2) Title 4 U.S.C. 101 - Oath by members of legislatures and officers.
- 3) Title 18 U.S.C. section 241 - Conspiracy against rights.
- 4) Title 18 U.S.C. section 242 - Deprivation of rights under color of law.
- 5) Title 18 U.S.C. 1038 - False information and hoaxes.
- 6) Title 18 U.S.C. 1001 - statements or entries generally.
- 7) Title 18 U.S.C. - 1503 influencing or injuring officer or juror generally.
- 8) Title 18 U.S.C. section 1512B - Engages in misleading conduct.
- 9) Title 18 U.S.C. section 2071 - concealment, removal, or mutilation generally.
- 10) Title 26 U.S.C. section 7214 - offenses by officers and employees of the United States.
- 11) Title 42 - U.S.C. section 1983 - Civil rights action for deprivation of rights.
- 12) Title 42 U.S.C. section 1985 (3) - conspiracy to interfere with civil rights.
- 13) Title 42 U.S.C. 2000a (a). Civil rights act of 1871,
- 14) Title 42 U.S.C. section 1986 - Action for neglect to prevent

Section 802 of the USA PATRIOT Act (Pub. L. No. 107-52) Expanded the definition of terrorism to cover “domestic,” as opposed to international, terrorism. A person engages in domestic terrorism if they do an act “dangerous to human life” that is a violation of the criminal laws of a state or the United States, if the act appears to be intended to: (i) intimidate or coerce a civilian population; (ii) influence the policy of a government by intimidation or coercion;

Lastly, current policing, fining, arrests and harassment throughout Lafayette County, MS is in violation of not only First Amendment “abridging the right of people to peaceably assemble” but more narrowly: **Title 18 U.S.C., Section 242- Deprivation of Rights Under Color of Law:** Whoever, under color of any law, statute, ordinance, regulation, or custom, willfully subjects any person in any State, Territory,

Commonwealth, Possession, or District to the deprivation of any rights, privileges, or immunities secured or protected by the Constitution or laws of the United States, or to different punishments, pains, or penalties, on account of such person being an alien, or by reason of his color, or race, than are prescribed for the punishment of citizens, shall be fined under this title or imprisoned not more than one year, or both; and if bodily injury results from the acts committed in violation of this section or if such acts include the use, attempted use, or threatened use of a dangerous weapon, explosives, or fire, shall be fined under this title or imprisoned not more than ten years, or both; and if death results from the acts committed in violation of this section or if such acts include kidnapping or an attempt to kidnap, aggravated sexual abuse, or an attempt to commit aggravated sexual abuse, or an attempt to kill, shall be fined under this title, or imprisoned for any term of years or for life, or both, or may be sentenced to death.

Due to your unconstitutional actions and draconian measures as described throughout this Affidavit/Declaration, you have invoked the referenced Sections 3 & 4 of the 14th Amendment. As such you have lawfully vacated your office and forfeited all benefits thereof, including salary and pension.

Lawful notification has been provided to you stating that if you do not rebut the statements, charges and averments made in this Affidavit/Declaration, then, you tacitly agree with and admit to them. Pursuant to that lawful notification, if you disagree with anything stated under oath in this Affidavit/Declaration of Truth, then rebut to me that with which you disagree, with particularity, within (15) fifteen days of receipt thereof, by means of your own written, notarized affidavit of truth, based on specific, true, relevant fact and valid law to support your disagreement, attesting to your rebuttal and supportive positions, as valid and lawful, under the pains and penalties of perjury under the laws of the United States of America and the State of Mississippi. An unrebutted affidavit stands as truth and fact before any court. Your failure to respond, as stipulated, is your tacit agreement with and admission to the fact that everything in this Affidavit/Declaration of Truth is true, correct, legal, lawful, and is your irrevocable admission attesting to

this, fully binding upon you in any court of law in America, without your protest, objection and that of those who represent you.

This Affidavit stands as notice of Pending Litigation and as such will be forwarded to the Office of the Attorney General to provide such notice of intent. This Affidavit and your response or lack thereof will accompany the Federal complaint which will be filed 15-Days from today

Affiant further sayeth naught.

All Rights Reserved,



Matthew Oliver Reardon, Affiant/Declarant

1-3-2021

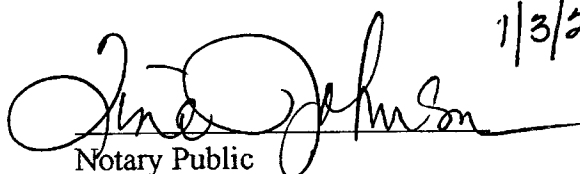
Date

NOTARY STATEMENT

In the State of Mississippi,

County of Lafayette

I swear that on this 3rd day of January, 2022 the above-named Affiant/Declarant, **Matthew Oliver Reardon**, personally appeared before me, and of his own free will, signed and executed this Affidavit/Declaration of Truth.



Notary Public

My Commission Expires: _____

1/3/2022



Seal: